

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF AKAYEV AND OTHERS v. RUSSIA

(Applications nos. 79252/17 and 24 others –
see appended list)

JUDGMENT

STRASBOURG

2 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Akayev and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 February 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. On the different dates the applicants were taken to police stations as administrative suspects of offences related to public events. They were subsequently administratively convicted for participation in different public events.

5. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

7. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention.

8. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, and *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018), and that the use of these measures be properly documented (see *Fortalnov and Others v. Russia*, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018; *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019; and *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017). The authorities' failure to comply with these requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see the mentioned cases, as well as *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, and *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).

9. Having examined all the material submitted to it and having dismissed the Government's objection of non-exhaustion (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints.

10. The Court discerns nothing in the official records to conclude that recourse to such procedures was justified, as required by the Russian law. In particular, the applicants were taken to the police station as administrative suspects, whereas there was no evidence or assessment that it was impracticable, on the spot, to compile the offence records and to achieve the objectives set out in the Code of Administrative Offences (CAO), that is to establish the suspects' identity (see *Korneyeva*, cited above, §§ 34-36). It concludes that the national authorities failed to comply with the applicable rules of domestic procedure and considers that the applicants' escorting, arrest and detention were not "in accordance with a procedure prescribed by law".

11. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Karelin v. Russia*, no. 926/08, §§ 69-84, 20 September 2016, concerning examination of administrative-offence cases in the absence of a prosecuting party in the judicial proceedings governed by the CAO; *Kasparov and Others v. Russia* no. 21613/07, §§ 84-97, 3 October 2013; and *Frumkin v. Russia*, no. 74568/12, §§ 102-42, 5 January 2016, concerning disproportionate measures taken by the authorities against participants of public assemblies).

14. In view of the above findings, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention raised by the applicants in relation to their administrative-offence proceedings.

IV. REMAINING COMPLAINTS

15. The applicants in applications nos. 39139/18 and 43789/18 also raised other complaints under various Articles of the Convention and the Protocols thereto.

16. The Court has examined the applications and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

17. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

18. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

19. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], nos. 1253/04 and 2 others, § 96, 11 December 2014, and, as a recent example, *Akhtyamov and Others v. Russia* [Committee], nos. 17105/18 and 8 others), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that there is no need to deal separately with the remaining complaints under Article 6 of the Convention, and *finds* the remainder of applications nos. 39139/18 and 43789/18 inadmissible;

3. *Holds* that these complaints disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 2 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start and end of unauthorised detention	Specific defects others than those mentioned in the paragraph 10 of the present judgment	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
1.	79252/17 02/11/2017	**Rustam Magomedovich AKAYEV** 1987	Glukhov Aleksey Vladimirovich Novocheboksarsk	From 4.20 p.m. on 26/03/2017 to 3.45 p.m. on 27/03/2017 (until the hearing of the first-instance court in the administrative offence case)	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich v. Russia*, no.5865/07, §§ 63-65, 13 February 2018, an *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). Administrative detention record drawn more than three hours after the apprehension (*Fortalnov and Others v. Russia*, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Anti-corruption rally, Nizhny Novgorod, on 26/03/2017, two sets of administrative offence proceedings: 1) Art. 19.3 § 1 of CAO; fine of RUB 500; Nizhny Novgorod Regional Court, 04/05/2017. 2) Art. 20.2 § 5 of CAO; fine of RUB 10,000; Nizhny Novgorod Regional Court, 15/06/2017.	3,900
2.	79257/17 02/11/2017	**Roman Yevgenyevich GUBAYDULLIN** 1976	Glukhov Aleksey Vladimirovich Novocheboksarsk	From 4.20 p.m. on 26/03/2017 to 4.30 p.m. on 27/03/2017 (until the hearing of the first instance court in the administrative offence case)	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). Administrative offence record drawn more than three hours after the apprehension (*Fortalnov and Others*, cited above, §§ 76-79).	Art. 11 (1) - disproportionate measures against organisers and participants of public assemblies - Anti-corruption rally, Nizhny Novgorod, on 26/03/2017, two sets of administrative offence proceedings: 1) Art. 19.3 § 1 of CAO; fine of RUB 500; Nizhny Novgorod Regional Court, 04/05/2017. 2) Art. 20.2 § 5 of CAO; fine of RUB 10,000. Nizhny Novgorod Regional Court, 24/05/2017.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start and end of unauthorised detention	Specific defects others than those mentioned in the paragraph 10 of the present judgment	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
3.	79259/17 02/11/2017	**Vadim Viktorovich KOZLOV** 1973	Glukhov Aleksey Vladimirovich Novocheboksarsk	From 3.00 p.m. on 26/03/2017 to 11.25 a.m. on 27/03/2017 (until the hearing of the first instance court in the administrative offence case)	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). Administrative detention record drawn more than three hours after the apprehension (*Fortalnov and Others*, cited above, §§ 76-79).	Art. 11 (1) - disproportionate measures against organisers and participants of public assemblies - Anti-corruption rally, Nizhny Novgorod, on 26/03/2017, two sets of administrative offence proceedings: 1) Art. 19.3 § 1 of CAO; fine of RUB 500; Nizhny Novgorod Regional Court, 03/05/2017. 2) Art. 20.2 § 5 of CAO; fine of RUB 10,000; Nizhny Novgorod Regional Court, 03/05/2017.	3,900
4.	28098/18 30/05/2018	**Vyacheslav Valeryevich GRACHEV** 1978	Memorial Human Rights Centre Moscow	From 3.30 p.m. to 8.30. p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017. Art. 20.2 § 5 of CAO; fine of RUB 20,000; Moscow City Court, 30/03/2018. Art. 6 (1) - lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
5.	34439/18 18/07/2018	**Kirill Valeryevich YARIN** 1985	Memorial Human Rights Centre Moscow	From 4.10 p.m. to 11.10 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017. Art. 19.3 § 1 of CAO, fine of RUB 1,000, Moscow City Court, 18/01/2018. Art. 6 (1) - lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start and end of unauthorised detention	Specific defects others than those mentioned in the paragraph 10 of the present judgment	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
6.	36098/18 26/07/2018	**Roman Pavlovich TOMCHUK** 1978	Memorial Human Rights Centre Moscow	From 4.30 p.m. on 26/03/2017 to 4.30 a.m. on 28/03/2017.	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). Administrative detention record drawn more than three hours after the apprehension (*Fortalnov and Others*, cited above, §§ 76-79).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 26/03/2017; Art. 20.2 § 5 of CAO; fine of RUB 20,000; Moscow City Court, 06/03/2018. Art. 6 (1) - lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
7.	36104/18 26/07/2018	**Kirill Vladimirovich SHVEDOV** 1991	Memorial Human Rights Centre Moscow	From 2.40 p.m. to 9.30 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). Administrative detention record drawn more than three hours after the apprehension (*Fortalnov and Others*, cited above, §§ 76-79).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 26/01/2018. Art. 6 (1) - lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
8.	38563/18 06/08/2018	**Vladimir Igorevich IZVEKOV** 1956	Memorial Human Rights Centre Moscow	From 1.55 p. m on 12/06/2017 to 00.50 a.m. on 13/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 10,000, Moscow City Court, 08/02/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900

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9.	38740/18 26/07/2018	**Nikita Alekseyevich SAFONOV** 1988	Zhdanov Ivan Yuryevich Vilnius	From 4.00 p.m. to 10.40 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). Administrative detention record drawn more than three hours after the apprehension (*Fortalnov and Others*, cited above, §§ 76-79).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 20,000, Moscow City Court, 26/01/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
10.	39129/18 14/08/2018	**Ivan Aleksandrovich ZAKHAROV** 1997	Memorial Human Rights Centre Moscow	From on 4.00 p.m. to 11.00 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 14/02/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900

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11.	39139/18 10/08/2018	**Yelena Tagirovna OLKHOVA** 1980	Zhdanov Ivan Yuryevich Vilnius	From 2.50 p.m.to 6.30 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies, two manifestations: 1) Moscow, on 12/06/2017, Art. 20.2 § 6.1 of CAO, fine of RUB 10,000, Moscow City Court, 12/02/2018. 2) Tumen, on 31/01/2021, Art. 20.2 § 5 of CAO, administrative fine of RUB 10,000, Tumen Regional Court, 07/04/2021. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
12.	39319/18 07/08/2018	**Filipp Filippovich BLAGOVESHCHENSKIY** 1994	Terekhov Konstantin Ilyich Moscow	From 4.00 p.m. to 9.15 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 10,000, Moscow City Court, 14/02/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900

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13.	41386/18 18/08/2018	**Aleksandra Sergeyevna RASTORGUYEVA** 1995	Antokhin Yevgeniy Vyacheslavovich Moscow	From 2.30 p.m. on 12/06/2017 to 2.00 a.m. on 13/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). Administrative detention record drawn more than three hours after the apprehension, and the time of arrest noted therein was at variance with the actual time of the apprehension (*Fortalnov and Others*, cited above, §§ 76-79).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 30/03/2018; Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
14.	42269/18 27/08/2018	**Viktor Viktorovich TABAKOV** 1996	Memorial Human Rights Centre Moscow	From 3.00 p.m. to 10.00 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 10,000, Moscow City Court, 28/02/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
15.	42380/18 24/08/2018	**Denis Aleksandrovich SHCHETININ** 1992	Zhdanov Ivan Yuryevich Vilnius	From 3.00 p.m. to 11.45 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 28/02/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900

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16.	42688/18 25/06/2018	**Ivan Vladimirovich GUSHCHIN** 1998	Memorial Human Rights Centre Moscow	From 2.20 p.m. to 8.30 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 20,000, Moscow City Court, 22/01/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
17.	43152/18 30/08/2018	**Dmitriy Ivanovich BELYY** 1978	Zhdanov Ivan Yuryevich Vilnius	From 4.00 p.m. to 8.30 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 02/03/2018 Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
18.	43789/18 02/09/2018	**Boris Anatolyevich KANTOROVITCH** 1992	Vorobyev Viktor Viktorovich Syktyvkar	From 3.00 p.m. to 10.00 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). Administrative detention record drawn more than three hours after the apprehension (*Fortalnov and Others*, cited above, §§ 76-79).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 10,000, Moscow City Court, 02/03/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900

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19.	43924/18 05/09/2018	**Mikhail Nikolayevich IVANOV** 1968	Zhdanov Ivan Yuryevich Vilnius	From 2.30 p.m. to 8.00 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). Record of the administrative offence was drawn only on 15/06/2017, three days after the applicant's detention, so that the aim of the applicant's escorting and detention is unclear.	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 14/03/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
20.	45715/18 22/09/2018	**Sergey Sergeyevich KUDRYAVTSEV** 1986	Memorial Human Rights Centre Moscow	From 4.00 p.m. to 10.00 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 10,000, Moscow City Court, 06/06/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11	3,900
21.	46113/18 16/09/2018	**Tatyana Vasilyevna KOMAROVA** 1995	Yatsenko Irina Aleksandrovna Moscow	From 4.40 p.m. to 10.00 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 20,000, Moscow City Court, 16/03/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start and end of unauthorised detention	Specific defects others than those mentioned in the paragraph 10 of the present judgment	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
22.	46140/18 26/09/2018	**Nikita Maksimovich KOZYREV** 1998	Memorial Human Rights Centre Moscow	From 5.30 p.m. on 12/06/2017 to 00.45 a.m. on 13/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 6.1 of CAO, fine of RUB 10,000, Moscow City Court, 26/03/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
23.	46445/18 21/09/2018	**Yakov Vladimirovich YERMAKOV** 1985		From 4.00 p.m. to 10.00 p.m. on 12/06/2017	Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above). The time of arrest noted in the administrative detention record was at variance with the actual time of the apprehension (*Fortalnov and Others*, cited above, §§ 76-79).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 20,000, Moscow City Court, 22/03/2018. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900
24.	46712/18 22/09/2018	**Roman Vladimirovich STRAKHOV** 1972	Laptev Aleksey Nikolayevich Moscow	From 2.45 p.m. to 9.00 p.m. on 12/06/2017	No written record of the administrative escort or detention (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017, and *Fortalnov and Others*, cited above, §§ 76-79). Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v. Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Anti-corruption manifestation, Moscow, on 12/06/2017, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 22/03/2018 Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start and end of unauthorised detention	Specific defects others than those mentioned in the paragraph 10 of the present judgment	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
25.	30569/20 29/06/2020	**Denis Vladimirovich MAKSIMOV** 1978	Gilmanov Mansur Idrisovich Podolsk Then Memorial Human Rights Centre Moscow	1) From 5.30 p.m. to 11.30 p.m. on 31/12/2019 2) From 5.30 p.m. to 10.30 p.m. on 23/01/2021 3) From 5.00 p.m. on 01/02.2021 to 11.00 a.m. on 02/02/2021 (until the first instance hearings in an administrative offence case)	1) Administrative offence record was drawn on 24/01/2020, three weeks after the applicant's apprehension, so that the aim of that measure is unclear. 1), 2) and 3) Detention as an administrative suspect beyond the three-hour statutory period and without "exceptional circumstances" (Art. 27.3 § 1 and 27.5 §§ 1-4 of CAO) (see *Butkevich*, §§ 63-65; *Tsvetkova and Others v Russia*, §§ 121-22, both cited above).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies. Two manifestations in Moscow: 1) On 31/12/2019, Art. 20.2 § 5 of CAO, fine of RUB 15,000, Moscow City Court, 20/04/2020. 2) On 23/01/2021, Art. 20.2 § 8 of CAO, fine of RUB 150,000, Moscow City Court, 16/03/2021. Art. 6 (1) – lack of impartiality of the tribunal in the absence of the prosecuting party in the administrative offence proceedings detailed above under Art. 11.	6,000

[1] Plus any tax that may be chargeable to the applicants.